



**Order under Section 30
Residential Tenancies Act, 2006**

Citation: Flowers v Fahel & Co Property Management, 2025 ONLTB 97413

Date: 2025-12-18

File Number: LTB-T-066758-24

In the matter of: 4, 178 CLARENCE ST
OTTAWA ON K1N5P8

Between: Matthiew Joseph Kyle Flowers Tenant

And

Fahel & Co Property Management Landlord

Matthiew Joseph Kyle Flowers (the 'Tenant') applied for an order determining that Fahel & Co Property Management (the 'Landlord') failed to meet the Landlords' maintenance obligations under the *Residential Tenancies Act, 2006* (the 'Act') or failed to comply with health, safety, housing or maintenance standards.

This application was heard by videoconference on November 26, 2025.

Only the Tenant attended the hearing.

As of 10:45 a.m., the Landlord was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Tenant's evidence.

Determinations:

Preliminary Issue

1. The Tenant originally named both the Landlord and “Smart Living Properties” (the ‘Former Landlord’) as landlord parties in the application. The Former Landlord ceased being the landlord of the residential complex as of May 2024, at which time the Landlord took over as the property manager from the Former Landlord.
2. When one landlord replaces another, the new landlord “steps into the shoes” of the former landlord, and this includes taking responsibility for liabilities of the former landlord to current tenants. While the evidence before me was that this was a change in property manages, as opposed to a change in ownership, the Tenant said he never had any information about who owned the property.
3. Section 18 of the Act is often cited for the proposition that new landlords “step into the shoes” of former landlords, because it provides that covenants concerning things related to the rental unit or residential complex run with the land. This wording appears to refer to a change in ownership of a property, as opposed to a change in property management.
4. In my view, however, the same principle applies when there is a change in property management. This is reflected in the wording of ss. 29(1)1 of the Act, under which this application was filed. That subsection permits a tenant to file an application for an order determining “... that **the landlord** has breached an obligation under ...” section 20 of the Act (emphasis added). The present tense use of the word “landlord” means that tenants may file this type of application against their current landlord. The provision also allows former tenants to file this type of application. Semantically, this suggests that the former tenant would have to commence the application against their “former” landlord, because the tenant would not have a current landlord of the rental unit.
5. On a plain reading of the words of the Act in their entire context and in harmony with the scheme and purpose of the Act, this ought to be interpreted to mean that a former tenant may file an application against the person who was their landlord at the time the tenancy ended. The right of a current tenant to file an application against a former landlord instead of the current landlord should not be read into the Act. Had the legislature intended to confer that right, it would have been explicitly included in the Act.
6. In my view, this is a logical, teleological, rational, and internally consistent interpretation of the Act.
7. Smart Living Properties is therefore removed as a party to the application.

Merits of the Application

8. As explained below, the Tenant proved the allegations in the application on a balance of probabilities.

9. Section 20 of the Act states:

Landlord's responsibility to repair

20 (1) A landlord is responsible for providing and maintaining a residential complex, including the rental units in it, in a good state of repair and fit for habitation and for complying with health, safety, housing and maintenance standards. 2006, c. 17, s. 20 (1).

Same

(2) Subsection (1) applies even if the tenant was aware of a state of nonrepair or a contravention of a standard before entering into the tenancy agreement. 2006, c. 17, s. 20 (2).

10. The Court of Appeal for Ontario has rejected the proposition that this provision ought to be interpreted such that a landlord is in breach of their maintenance obligations as soon as a maintenance issue arises. Rather, a contextual approach, including consideration of the “entirety of the factual situation”, must be applied to determine whether a landlord has breached their maintenance obligations under the Act: *Onyskiw v. CJM Property Management Ltd.*, 2016 ONCA 477, paras 58-60, 84-86; *TST-98783-18 (Re)*, 2019 CanLII 87665 (ON LTB).
11. Generally, landlords are not held liable for maintenance issues that arise if the landlord addresses the issue of disrepair in a timely and effective manner once they become aware, or ought to have become aware, of the issue: *TST-67067-16 (Re)*, 2016 CanLII 72234 (ON LTB), para 33; *LTB Interpretation Guideline #5: Breach of Maintenance Obligations*.
12. This is the Tenant's application and he bears the burden of proof on a balance of probabilities. To prove something on a balance of probabilities, one must present sufficient clear, convincing, and cogent evidence to establish that it is more likely than not that something happened or a fact is true: *FH v. McDougall*, 2008 SCC 53, paras 44-46.
13. This application relates to a flood that occurred in the rental unit on August 8, 2023, and the resulting damage.
14. The Tenant's application was filed August 19, 2024. This application was filed pursuant to subsection 29(1)1 of the Act, and is subject to the one-year limitation period prescribed by ss. 29(2) of the Act. This means the LTB does not have jurisdiction to order a remedy relative to the period that is more than one year before the application was filed: *Toronto Community Housing Corporation v. Vlahovich*, 2010 ONSC 1686 (CanLII).

15. The flooding event occurred outside the limitation period, but the Former Landlord was still required to discharge its maintenance obligations under section 20 of the Act. The LTB does have jurisdiction to order remedies relative to the Landlord's ongoing breach of the Act within the limitation period, as set out below. Evidence of what happened outside the limitation period was accepted for context.
16. On August 8, 2023 at 11:56 a.m., the Tenant sent an email to the Former Landlord informing them that there was a "... massive emergency size flooding" in the basement of the building (DOC-6825593, p. 3). He also phoned the Former Landlord's emergency number to report the flooding on the same day.
17. The Former Landlord replied to the email at 5:48 p.m. on August 8, 2023, saying that a maintenance person would attend in about 20 minutes (DOC-6825593, p. 3).
18. On August 10, 2023, the Former Landlord emailed the residents of the building, providing some information about the cause of the August 8, 2023 flood. It states that some residents of the building had been "... misusing their sump pumps", causing "... water overflow, basement flooding, and extensive damage ...". Then on October 23, 2023, the Former Landlord emailed the residents of the building again, stating that "[t]he toilet system in the building is [connected] to a sump pump and flushing non flushable items can cause damage" (DOC-6825593, p. 4). This led the Tenant to conclude that the flood water was not clean water or "gray" water, but was sewage.
19. After back-and-forth communication with the Former Landlord, the Tenant opened a maintenance request to have damage to the rental unit caused by the August 8, 2023 flood repaired. On October 25, 2023, the Former Landlord emailed the Tenant to advise that maintenance staff would attend the unit to address his maintenance request on October 25, 2023 "(water damage repair)". On October 27, 2023, the Former Landlord emailed the Tenant to advise that maintenance staff would attend the unit on October 30, 2023 to address the same maintenance request ("replace baseboard") (DOC-6825593, p. 5).
20. The only work the Former Landlord completed was replacing the baseboards in the unit, and the balance of the damage to the unit, described below, was left unrepaired.
21. When the Landlord took over management of the residential complex in May 2024, the Tenant opened a new maintenance request, hoping for a better result. The request was made on June 11, 2024. The next day, the Landlord informed the Tenant that maintenance staff would attend the unit that Friday to replace the baseboard and investigate the issues with the flooring.
22. A photo of the bedroom in the unit taken on June 11, 2024 was submitted by the Tenant, depicting the baseboards covered in green/brown stains. The Landlord's staff attended the unit and began carrying out repairs. A photo taken on August 19, 2024 shows that, the baseboards and flooring had been removed from the bedroom. The Tenant said this

depicts the progress made by June 12, 2024, but that no further work was done, and he did not receive further communication about these maintenance issues up to the time the Tenant moved out of the unit at the end of October 2024 (DOC-6825593, pp. 15-16).

23. The Tenant submitted photos of the damage to the unit that remained unrepaired up to the Tenant's move out date. These photos were taken on August 19, 2024 and August 26, 2024, more than one year after the flooding occurred. The unrepaired damage includes green stains on the baseboard and wall on a closet in the unit; damaged flooring including lifting, damaged, and missing floor panels; the re-accumulation dark green or black mould or mildew growth on living room baseboards; a crack under the kitchen island countertop where the island meets the wall, and other mould or mildew growth throughout the unit (DOC-6825593, pp. 6-11; 16-20; & 26-32).
24. The Tenant was told by maintenance staff that the sump pump is located behind the wall next to the island, and this crack is where water was entering the unit on August 8, 2023.
25. Underneath the flooring was a soft and soggy material, described by the Tenant as "cardboard". The damage to the floor panels caused them to lift, creating tripping hazards. The Tenant did trip on one night in the dark.
26. On August 31, 2024 the Tenant gave the Landlord an N9 notice to terminate the tenancy as of October 31, 2024. On October 8, 2024, the Tenant received an email from the Landlord advising that maintenance staff would be attending the unit on October 8, 2024 to remove drywall. The Tenant questioned the timing of this visit, given that there had been no progress on the repairs since June 2024. In my view it is reasonable to infer that the timing was related to the Landlord's desire to repair the damage to the unit in anticipation of renting it to a new tenant.
27. On October 9, 2024, the Tenant looked at the Landlord's portal where he initially made the maintenance request in June 2024, and found that the status was changed to "closed". He was unsure why this was the case given the state of repair the unit had been left in (DOC6825593, p.22).
28. Although the Former Landlord may not have been in breach of the Act immediately after the flood occurred on August 8, 2023, I find that the disrepair in the unit, described above, persisted from the day of the flood up to the time the tenancy ended on October 31, 2024. The Former Landlord made some cosmetic repairs by replacing baseboards, but given the other issues not addressed and the fact that the mould or mildew reappeared later on the baseboards, the Former Landlord did not respond to the disrepair in a timely or effective manner.
29. The Landlord initially responded to the Tenant's June 2024 maintenance request in a timely manner, quickly attending and removing some baseboards and flooring, but the work inexplicably stopped there, leaving the unit in disrepair until the tenancy ended. The

Landlord did not address the subject of the Tenant's June 2024 maintenance request in a timely and effective manner.

30. The Tenant requested a rent abatement and \$800.00 to replace a mattress that he said was destroyed because of the disrepair issues.
31. The Tenant's evidence was that the cost of the mattress was \$800.00, and I find this to be a reasonable amount to replace it. A photo of the mattress taken on August 26, 2024 shows dark green stains, which may have been mould. I accept that the mattress was destroyed because of the water damage in the unit, and the Tenant is entitled to recover this amount.
32. The monthly rent was \$1,350.00. While the unit was not entirely uninhabitable, the Tenant was forced to live in a rental unit requiring significant repairs for a total of nearly 14 months. There was no documentary evidence, such as a certificate of analysis or report from a mould testing or remediation contractor, to support that the growths around the unit shown in the photos were in fact mould, or what type(s) of mould were present, but a tenant cannot be expected to live in a unit with obvious and substantial water damage for such a long period, while the landlord is entirely non-responsive for most of the time, and leaving work incomplete and/or completing only superficial repairs when they do attend the unit.
33. When a tenant is required to pay 100% of the rent for a rental unit, they are entitled to receive 100% of the value of what they pay for. A rent abatement is intended to account for the proportion of that value that the Tenant did not receive because of a landlord's breach of the Act.
34. In this case, the disrepair was substantial and pervasive throughout the unit. The flooring was damaged, lifting, and/or missing in various parts of the unit, and there was mould and/or mildew growing throughout the unit.
35. The Tenant is entitled to a significant rent abatement for having endured living in these conditions for such a long period. In my view, the ongoing and unrepaired damage to the unit reduced the value of what the Tenant was paying for by 50%, and he is entitled to a rent abatement in this amount.
36. Since the application was filed on August 19, 2023, the Tenant is entitled to the rent abatement for the period from August 20, 2023 to October 31, 2024, when the tenancy ended.
37. 50% of the monthly rent is \$675.00. The *per diem* rent for the unit was \$44.38 (\$1,350.00 x 12, divided by 365). The Tenant is entitled to a rent abatement of \$9,041.28 for the period August 20, 2023 to October 31, 2024 [(13 months x \$675.00) + (12 days x \$44.38, divided by 2)].

38. The Tenant paid \$48.00 to file this application, and is entitled to recover this amount.

It is ordered that:

1. The Landlord shall pay the Tenant \$9,889.28. This amount represents:
 - \$9,041.28 for a rent abatement for the period August 20, 2023 to October 31, 2024.
 - \$800.00 for the reasonable costs that the Tenant has incurred or will incur to replace property disposed of as a result of the Landlord's actions.
 - \$48.00 for the cost of filing the application.
2. The Landlord shall pay the Tenant the full amount owing by December 29, 2025.
3. If the Landlord does not pay the Tenant the full amount owing by December 29, 2025, the Landlord will owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.
4. The Tenant has the right, at any time, to collect the full amount owing or any balance outstanding under this order.

December 18, 2025

Date Issued

Mark Melchers

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.